465, 477.) As Defendant's authority asserts, a party may seek restitution/unjust enrichment in lieu of breach of contract damages "when the parties had an express contract, but it … is unenforceable or ineffective for some reason." (*Durell,* supra, 183 Cal.App.4th at 1370.) If it is shown that the Lease is unenforceable or ineffective for some reason, Plaintiff would be able to proceed with his claim for unjust enrichment.

Based on that above, Defendant's demur to the third cause of action for unjust enrichment is **OVERRULED**.

Conclusion

Defendant's demurrer to the first, second, and third causes of action is **OVERRULED** in its entirety.

14. 9:00 AM CASE NUMBER: C25-02007
CASE NAME: JUNG CHOI VS. RAMANUJAN GROUP LLC
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF JUNG DONG CHOI'S COMPLAINT**
FILED BY: RAMANUJAN GROUP LLC
****TENTATIVE RULING:****

Before the Court is Defendant Ramanujan Group, LLC's Motion to Strike Portions of Plaintiff Jung Dong Choi's Complaint.

Factual Allegations

See Line 13.

Scope of Motion

Defendant seeks to strike allegations relating to Plaintiff's requests for (1) punitive and exemplary damages, as well as attorney fees, related to the second cause of action for intentional interference with contractual relations, as well as the request for (2) attorney fees related to the third causes of action for unjust enrichment. (See Notice at 2:8-26.)

Legal Standard

Any party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part of the pleading. (Code Civ. Proc. § 435 (b)(1); Cal. Rules of Court, Rule 3.1322(b).)

The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of the pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Cal. Code Civ. Proc. §§ 436(a)-(b); *Stafford v. Schultz* (1954) 42 Cal.2d 767, 782 ["matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) An "irrelevant" matter includes allegations not essential to the claim or defense, as well as allegations "neither pertinent to nor supported by an otherwise sufficient claim or defense." (CCP§ 431.10 (b).)

Analysis

Punitive Damages

Plaintiff only seeks punitive damages related to the claim for intentional interference with contractual relations. To support punitive damages, the complaint must allege the ultimate facts of the defendant's oppression, fraud or malice. (*Cyrus v. Haveson* (1976) 65 Cal.App.3d 306, 316.)

"'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294.) "*Animus malus* or evil motive, then, is the central element of the malice which justifies an exemplary award." (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 30.) "'Oppression' means 'subjecting a person to cruel and unjust hardship in conscious disregard of his rights." (*Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 511.)

Regarding a request for punitive damages against a corporate entity, such an award "must rest on the malice of the corporation's employees." (*Cruz v. Homebase* (2000) 83 Cal.App.4th 160, 167.) However, the "law does not impute every employee's malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the 'officer[s], director[s], or managing agent[s].'" (*Ibid.* quoting Cal. Civ. Code § 3294, subd. (b).)

A 'managing agent' is an employee "who 'exercise[s] substantial discretionary authority over decisions that ultimately determine *corporate policy.*'" *(Ibid.* italics in original.) 'Corporate policy' is "the general principles which guide a corporation, or rules intended to be followed consistently over time in corporate operations." (*Ibid.*) "A 'managing agent' is one with substantial authority over decisions that set these general principles and rules." (*Id.* at 167-68.)

As noted by Defendant, there are no allegations that any corporate officer, director, or managing agent was aware, much less approved or ratified, the decision not to allow the assignment of the lease. There are general allegations that "Defendant" refused to approve the assignment. "However, [the Court] fail[s] to see how any of those allegations sets forth facts to show [Defendant]'s advance knowledge, authorization or ratification." (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168.)

Plaintiff argues that it is not required to provide such allegations at the pleading stage, citing *Credit Managers Assn. v. Superior Court* (1975) 51 Cal. App.3d 352, 361 and *Okun v. Superior Court* (1981) 29 Cal.3d 442, 458. Neither of those cases, however, pertain to the pleading requirements necessary for a punitive damages claim against a corporate defendant. Defendant also cites *Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1140-1141 and *Pacific Gas and Electric Company v. Superior Court* (2018) 24 Cal.App.5th 1150, 1173.

Romo pertains to an appeal after a jury trial and arguments related to the sufficiency of the evidence to support the punitive damages award. It does not pertain to pleading standards, so does not support Defendant's position. Likewise, *Pacific Gas* involved a motion for summary adjudication and "whether plaintiff presented sufficient evidence to raise a triable issue of fact as to malice." (*Pacific Gas* 24 Cal.App.5th at 1170.) Again, it does not address pleading standards and thus does not control.

The *Grieves* case cited above, however, does specifically address the sufficiency of the allegations of a complaint involving a request for punitive damages against a corporate defendant. It indicates that there need to be some allegations showing that a corporate officer, director, or managing agent knew of and/or ratified the alleged malicious actions to survive demurrer. After noting that there were no such allegations, the Court of Appeal held that the "trial court should have granted real parties' motions to strike" the paragraph seeking punitive damages "*with leave to amend.*" (*Grieves* 157 Cal.App.3d at 168 italics in original.)

Attorney's Fees

"As a general rule, each party to litigation must bear its own attorney fees, unless otherwise provided by statute of contract." (*Hyduke's Valley Motors v. Lobel Financial Corp.* (2010) 189 Cal.App.4th 430.) Here, the parties do not argue that there is a statute that allows for attorneys' fees. There is an attorney fee provision in the Lease, which is the basis for Plaintiff's claims. Defendant only moves to strike the request for attorneys' fee related to the intentional interference and unjust enrichment claims – not the breach of contract claim.

Intentional Interference with Contractual Relations

Section 30.20 of the Lease states, in pertinent part:

> "If either party institutes an action or proceeding against the other ***relating to the provisions of*** this Lease, then the non-prevailing party in such action or proceeding shall reimburse the prevailing party for its actual attorneys' fees…." (Lease § 30.20 emphasis added.)

Defendant argues that Plaintiff cannot recover under the 'tort of another' doctrine. Plaintiff does not rely on this theory but instead contends that scope of the attorneys' fee provision is broad enough to encompass his claim for intentional interference.

As the highlighted section above indicates, the attorneys' fee provision can be invoked in any action "relating to the provisions of" the Lease. Plaintiff's intentional interference claim is based on the theory that Defendant improperly withheld approval of an assignment of his lease to an approved prospective purchaser/tenant which is, among other things, a violation of the terms of the Lease. Specifically, section 17.1 of the Lease indicates that the Plaintiff cannot "assign or transfer" the lease without "the prior written consent of Landlord, which consent shall not be unreasonably withheld or delayed." (Lease § 17.1.)

Plaintiff alleges that Defendant unreasonably withheld and/or delayed its written consent to assignment of Plaintiff's lease which led directly to "the buyer withdrawing from the contract to purchase" Plaintiff's restaurant "in that Plaintiff could not deliver the operating restaurant within the time allowed." (Complaint ¶ 28.) Thus, Plaintiff's intentional interference claim 'relates to' a provision of the Lease.

"Parties to a contract 'may validly agree that the prevailing party will be awarded attorney fees incurred in any litigation between themselves, whether such litigation sounds in tort or in contract.'" (*GoTek Energy, Inc. v. SoCal IP Law Group, LLP* (2016) 3 Cal.App.5th 1240, 1250.) "If a contractual attorney fee provision is phrased broadly enough, … it may support an award of attorney fees to the prevailing party in an action alleging both contract and tort claims…" (*Lockton v. O'Rourke* (2010) 184

Cal.App.4th 1051, 1076.) There is nothing in the clause at issue which would limit attorney fees to purely contractual claims.

Unjust Enrichment

Plaintiff's theory as to why it is entitled to attorney fees on the unjust enrichment cause of action is a bit unclear. His opposition is similar to that of the demurrer wherein he argues that the cause of action is properly stated. While the Court agreed that the unjust enrichment cause is properly stated (see line 13), this does not explain why Plaintiff would be entitled to attorney fees.

The unjust enrichment claim is an equitable claim that cannot rely upon a contract. "As a matter of law, an unjust enrichment claim does not lie where the parties have an enforceable express contract." (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1370 citing *California Medical Assn. v. Aetna U.S. Healthcare of California, Inc.* (2001) 94 Cal.App.4th 151, 172.) Since there cannot be a contract at issue for the unjust enrichment cause of action to stand, there cannot be a contract which allows for an award of attorneys' fees related to such a claim.

<u>Conclusion</u>

Based on the above, Defendant's motion is:

- **GRANTED** as to the allegations relating to punitive damages;
- **DENIED** as to the request for attorneys' fees on the second cause of action for intentional interference with contractual relations; and
- **GRANTED** as to the request for attorneys' fees on the third cause of action for unjust enrichment.

Plaintiff is granted leave to amend regarding the request for punitive damages as to the interference claim only. Leave is denied as to the request for attorneys' fees on the unjust enrichment cause of action.

15. 9:00 AM CASE NUMBER: C25-02383
CASE NAME: IVORY EVANS VS. SUNIL YADAV
HEARING ON DEMURRER TO: 1ST, 2ND, 4TH, AND 5TH CAUSES OF ACTION OF PLAINTIFF'S COMPLAINT
FILED BY: YADAV, SUNIL L.
<u>*TENTATIVE RULING:*</u>

Defendant Sunil L. Yadav ("Defendant") filed a Demurrer to plaintiff Ivory Evans' ("Plaintiff") Complaint on November 26, 2025 (the "Demurrer"). The Demurrer was set for hearing on April 13, 2026.

<u>Background and Analysis</u>

No opposition was filed. However, Plaintiff filed a First Amended Complaint on March 30, 2026.

A party may amend its pleading once without leave of the court at any time before the answer,